

Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl
The State Secretary for Justice and Security
P.O. Box 20201
2500 EE THE HAGUE

Date

February 16, 2023

Our reference

z2022-04441

Contact person

Your reference

4078869

Subject

Amendment of the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children Act

Dear Mr. Van der Burg,

By letter dated July 15, 2022, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR), regarding the draft legislative proposal for the Amendment of the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children Act, in order to provide for the possibility for the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children to process certain categories of special personal data (hereinafter: the draft).

The draft provides the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children (hereinafter: the NR) with a legal basis for processing health data, data relating to an individual's sexual behavior or sexual orientation, and data of a criminal nature, in light of its duties. Neither the draft nor the current law indicates that the authorities providing this data to the NR are authorized or obliged to do so. Viewed from the perspective of the data subjects and considering the nature, scope, and structural character of the personal data to be processed, the AP sees this as a serious shortcoming. The AP objects to this point in the draft and advises against continuing the procedure unless the objection is resolved.

Scope of the draft

The draft creates a legal basis for the NR to process health data and data relating to an individual's sexual behavior or sexual orientation. It also provides a legal basis for the processing of personal data of a criminal nature. Processing is permitted to the extent that it is necessary for the exercise of the NR's existing legal duties and on the condition that appropriate safeguards are in place to ensure that the personal privacy of the data subjects is not disproportionately harmed. In this context, the draft limits the maximum retention period of the relevant personal data to ten years, prohibits the inclusion of the aforementioned personal data in the NR's final report, and restricts access to those tasked with carrying out the NR's duties.

Advice

Legal duties of the NR

The NR is tasked with investigating the developments in the scope and characteristics of trafficking in human beings and sexual violence against children, as well as advising on the prevention and combatting of such issues. The NR also examines the effects of policy measures taken in the approach to trafficking in human beings and sexual violence against children. The AP endorses that the legal duties assigned to the NR serve a significant interest that necessitates the processing of

personal data of a criminal nature. The AP also recognizes that this justifies an exception to the prohibition on processing special personal data.

Legal basis for processing by supplying authorities

The special categories of personal data and personal data of a criminal nature that the NR processes for its tasks are sourced from various (executive) authorities. These include, among others, the police, public prosecution service, probation service, labor inspection, youth care, and other institutions that provide assistance and protection to victims. Although the draft provides a legal basis for the NR itself, it does not indicate that these authorities are authorized or obliged to provide the relevant personal data to the NR. These authorities each have their own processing purposes and legal bases and may not disclose the entrusted special and sensitive personal data to others unless an exception to the processing prohibition under Article 9 of the GDPR applies and a legal basis as referred to in

1 The draft thus fulfills the possibility provided by Article 9, second paragraph, introductory phrase, and under g, of the GDPR, to make an exception to the processing prohibition for special categories of personal data under national law. The GDPR basis for processing is Article 6, first paragraph, under e (processing is necessary for the performance of a task carried out in the public interest).

2 As referred to in Article 5 of the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children Act.

3 Article 5a, first and second paragraphs, of the draft.

4 Article 5a, third paragraph, of the draft.

5 The National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children Act implements Directive 2011/36/EU of April 5, 2011 (Official Gazette 2013, 444). Under that directive, member states are required to 'monitor trends in trafficking in human beings, collect statistics, measure the results of measures to combat trafficking in human beings, and report regularly' (Recital 27, Directive 2011/36/EU of April 5, 2011).

6 Article 10 GDPR in conjunction with Article 32, introductory phrase, and under d, UAVG.

7 Article 9, first paragraph, GDPR read in conjunction with the second paragraph, introductory phrase, and under g.

8 P. 4 explanatory memorandum to the draft.

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Article 6 of the GDPR. The explanatory notes do not address the exception grounds and the processing basis of the disclosing parties other than stating that it is of great importance that the bodies and institutions approached by the NR provide all cooperation, where possible, in making available or obtaining the necessary data, including special personal data.⁹ In this context, it is noted that the NR indicates in the explanatory notes that it processes the special and criminal personal data entrusted to it for the purpose of conducting scientific research.¹⁰ The AP notes that conducting scientific research is not mandated by law to the NR. At the same time, the explanatory notes acknowledge that the task is broader and encompasses more.¹¹ Therefore, invoking scientific research as a processing basis and an exception to the processing prohibition is not sufficient.¹²

Conclusion and advice

From the above, it follows that neither the draft nor the current law indicates that the authorities providing the NR with special personal data and personal data of a criminal nature are authorized or obliged to do so. Viewed from the perspective of the data subjects and considering the nature, scope, and structural character of the personal data to be processed, the AP finds this a serious shortcoming.

The AP therefore objects to the draft on this point and advises that the draft should ensure that all authorities from whom the NR obtains special personal data and personal data of a criminal nature are authorized or obliged to do so. The AP advises against continuing the procedure unless the objection

is resolved.

Possible solution direction

Since the NR indicates that the tasks assigned to it go beyond scientific research¹³, the AP sees the most straightforward option as imposing an obligation on the relevant authorities to cooperate.

9 P. 5 explanatory memorandum accompanying the draft. This aligns with how the legislator viewed this, according to the legislative history from 2012, when establishing the NR. It was assumed at that time that the bodies and institutions approached by the NR would provide all cooperation in making available or obtaining the necessary data. The NR was 'authorized' to gain access to police files and files of the public prosecutor's office, and work was being done on 'further agreements' with Youth Care for the purpose of accessing the files and archives of youth care institutions. This also does not indicate that these authorities— in light of Article 6 GDPR—are authorized or obliged to provide the entrusted (sensitive and special categories of) personal data for further processing to the NR. See the Explanatory Memorandum accompanying the Amendment Note regarding the implementation of Directive 2011/36/EU of the European Parliament and the Council on the prevention and combating of trafficking in human beings, the protection of its victims, and replacing Framework Decision 2002/629/JHA of the Council (PbEU L 101) (TK 2012/13, 33 309, no. 7) as well as the explanatory notes, p. 4 regarding the Regulation establishing the National Rapporteur on Trafficking in Human Beings and Sexual Violence against Children 2012 (Official Gazette 2012 no. 12253).

10 P. 2 explanatory memorandum accompanying the draft.

11 P. 2 explanatory memorandum accompanying the draft.

12 Regarding special personal data, a fruitful appeal cannot be made to the exception ground of Article 9, second paragraph, under j, GDPR. Aside from that, the (cumulative) conditions as set out in Article 24, parts a to d, UAVG must also be met.

13 P. 2 explanatory memorandum accompanying the draft. In this context, it is noted that the NR, for example, employs file research and observation (p. 5 explanatory memorandum). Regarding observation—a term that may imply investigation—the explanatory notes do not describe what this concretely entails, what is recorded, how often this is used, in which cases this occurs, what this means for, for example, victims, perpetrators, or suspects, and how this relates—against the

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to provide specific (special) personal data to the NR.¹⁴ Such an obligation must be clear and precise, and its application predictable for those to whom it will apply.¹⁵ It must be clear which specific personal data must be provided for which of the NR's tasks and under what circumstances.¹⁶ Appropriate and specific measures and suitable safeguards must also be taken.¹⁷

Additional Efforts by the AP

The AP finally notes that the processing in question involves special and sensitive personal data, is extensive, and has a structural character. Given the existing tasks of the AP, it is likely that the concept will require the AP to make additional efforts. This additional effort has not yet been factored into the financing of the AP. This must be addressed appropriately by you as the responsible minister prior to the entry into force, in consultation with the Minister for Legal Protection as the responsible minister for the budget from which the AP is financed.

Disclosure of the Advice

The AP intends to make this advice public no earlier than four weeks after its release on the website www.autoriteitpersoonsgegevens.nl. Unless otherwise notified, it assumes that there are no objections to this.

background of the necessity for processing - to the broad and generally described tasks of the NR on

the one hand and investigative authorities on the other.

14 Article 6, first paragraph, introductory phrase and under c, GDPR.

15 See recital 41 of the GDPR.

16 Additionally, a delegation basis could be included in the legislative proposal that provides for further rules regarding the processing of (special) personal data by means of a general administrative measure.

17 See article 9, second paragraph, introductory phrase and under g, GDPR and article 10 GDPR.

One of the safeguards in the concept concerns the content of the NR's final report (art. 5a, third paragraph, under b, of the concept). This must not contain health data or data regarding someone's sexual behavior or sexual orientation, nor personal data of a criminal nature. It is noteworthy that the term final report is not mentioned in the task description of the existing law. Furthermore, the explanatory memorandum to the concept states that all reports always contain only aggregated and anonymized data.¹⁷ These ambiguities require further clarification or adjustment. Regarding the safeguard concerning the retention period (art. 5a, third paragraph, under a, of the concept), which is at least not longer than ten years, a distinction could still be made based on the type of report or advice, whereby the retention period could potentially be differentiated in advance so that a shorter retention period could be established for certain types of reports/advice.

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Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman